

**FLOOR AMENDMENT**  
HOUSE OF REPRESENTATIVES  
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3407 \_\_\_\_\_  
Of the printed Bill  
Page \_\_\_\_\_ Section \_\_\_\_\_ Lines \_\_\_\_\_  
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

**AMEND TITLE TO CONFORM TO AMENDMENTS**

Adopted: \_\_\_\_\_ Amendment submitted by: Kenton Patzkowsky \_\_\_\_\_

\_\_\_\_\_  
Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE

FOR

HOUSE BILL NO. 3407

By: Patzkowsky

FLOOR SUBSTITUTE

An Act relating to property; creating right to sell, salvage, or remove abandoned manufactured home and its contents for certain real property owners; defining term; requiring written notice to be sent via certified mail; requiring publication if certified mail is not delivered or is unclaimed; establishing requirements of the contents of the written notice; providing for notice to Oklahoma Tax Commission; requiring real property owner to document condition of the abandoned manufactured home via photographs; mandating commercially reasonable sale; allowing for abandoned manufactured home to be redeemed; providing for how the proceeds from the sale are to be distributed; removing liability of real property owner if good faith is exercised; providing this act to apply to abandoned manufactured homes located on leased lots, private real property, or manufactured home park property; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 690 of Title 60, unless there is created a duplication in numbering, reads as follows:

1       A. As used in this act, "abandoned manufactured home" means a  
2 manufactured home left on real property where the owner has failed  
3 for a period of one hundred eighty (180) consecutive days to pay for  
4 the use of the property or otherwise communicate with the real  
5 property owner regarding possession or removal of the manufactured  
6 home.

7       B. In the absence of any other agreement between the real  
8 property owner and the owner of a manufactured home, any person,  
9 firm, or corporation that allows an individual to use or occupy real  
10 property in order to utilize a manufactured home shall have the  
11 right to sell, salvage, or remove the manufactured home and its  
12 contents if the owner of the manufactured home has failed to contact  
13 the real property owner or to provide payment for the use of the  
14 real property for one hundred eighty (180) days; provided, however,  
15 that prior to exercising such right, the real property owner shall:

16       1. Within thirty (30) days after the failure of the  
17 manufactured homeowner to make payment or otherwise contact the real  
18 property owner, send by certified mail, return receipt requested,  
19 written notice to all recorded lienholders and to the last-known  
20 address of the manufactured homeowner stating the intent of the real  
21 property owner to exercise the right to sell, salvage, or remove the  
22 manufactured home and its contents if payment for use and occupying  
23 the real property is not made. The written notice shall include a  
24 description sufficient to identify the manufactured home that is

1 subject of the notice, including, if available, the manufacturer's  
2 serial number, vehicle identification number (VIN), title number,  
3 lot number, or other identifying characteristics, and the physical  
4 location of the manufactured home. If certified mail is returned  
5 unclaimed or undeliverable, the real property owner shall also  
6 provide notice by posting notice on the manufactured home and  
7 publishing said notice once a week for two (2) consecutive weeks in  
8 a newspaper of general circulation in the county where the  
9 manufactured home is located;

10 2. If, thirty (30) days after the mailing of the first notice,  
11 payment or contact has not been made, send a second written notice  
12 by certified mail, return receipt requested, to all recorded  
13 lienholders and to the last-known address of the manufactured  
14 homeowner restating the intent to exercise such right and including  
15 the same identifying information required by paragraph 1 of this  
16 subsection. The real property owner shall also provide written  
17 notice to the Oklahoma Tax Commission Motor Vehicle Division if the  
18 manufactured home is titled property; and

19 3. Upon the expiration of one hundred twenty (120) days after  
20 mailing the second notice, if payment or contact has not been made,  
21 proceed to exercise the right to sell, salvage, or remove the  
22 abandoned manufactured home and its contents in accordance with this  
23 act. Prior to sale, salvage, or removal, the real property owner  
24

1 shall document the condition of the abandoned manufactured home with  
2 photographs.

3 C. Any sale conducted pursuant to this act shall be a  
4 commercially reasonable sale, either public or private, after  
5 reasonable notice to all parties previously notified under this act.  
6 A bill of sale executed pursuant to this act shall be sufficient  
7 documentation for the Oklahoma Tax Commission to issue a new  
8 certificate of title.

9 D. A recorded lienholder may redeem the abandoned manufactured  
10 home by paying all amounts owed for the use of the property and  
11 reasonable costs incurred by the real property owner prior to the  
12 sale, salvage, or removal of the abandoned manufactured home.

13 E. Proceeds from the sale shall be distributed in the following  
14 order:

- 15 1. Costs of notice, removal, storage, and sale;
- 16 2. Amounts owed to the real property owner for use of the  
17 property;
- 18 3. Payment of any recorded liens in order of priority; and
- 19 4. Any remaining funds shall be remitted to the abandoned  
20 manufactured homeowner or held for one (1) year before being treated  
21 as abandoned property.

22 F. A real property owner who acts in good-faith compliance with  
23 this act shall not be liable for damages arising from the sale,  
24 salvage, or removal of the abandoned manufactured home.

1 G. This act shall apply to abandoned manufactured homes located  
2 on leased lots, private real property, or manufactured home park  
3 property.

4 SECTION 2. This act shall become effective November 1, 2026.  
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